United States Bankruptcy Court for the Northern District of Texas	
Name of Debtor: Tuesday Morning Corporation **Case Number:** 20-31476	**For Court Use Only** Claim Number: 0000010100 File Date: 06/02/2020 15:22:27

Proof of Claim (Official Form 410)

Read the instructions before filling out this form. This form is for making a claim for payment in a bankruptcy case. With the exception of 503(b)(9), do not use this form to make a request for payment of an administrative expense. Make such a request according to 11 U.S.C. § 503.
Filers must leave out or redact information that is entitled to privacy on this form or on any attached documents. Attach redacted copies of any documents that support the claim, such as promissory notes, purchase orders, invoices, itemized statements of running accounts, contracts, judgments, mortgages, and security agreements. **Do not send original documents;** they may be destroyed after scanning. If the documents are not available, explain in an attachment.
A person who files a fraudulent claim could be fined up to $500,000, imprisoned for up to 5 years, or both. 18 U.S.C. §§ 152, 157, and 3571.
Fill in all the information about the claim as of the date the case was filed. That date is on the notice of bankruptcy (Form 309) **that you received.**

04/19

Part 1: Identify the Claim

1. Who is the current creditor?
Name of the current creditor (the person or entity to be paid for this claim): Cornerstone Freight, LLC

Other names the creditor used with the debtor: _____

2. Has this claim been acquired from someone else? ☑ No ☐ Yes. From whom? _____

3. Where should notices and payments to the creditor be sent? Federal Rule of Bankruptcy Procedure (FRBP) 2002(g)

Where should notices to the creditor be sent?	**Where should payments to the creditor be sent?** (if different)
Name: Cornerstone Freight, LLC	Name:
Address: 118 Lee Parkway Ste 203	Address:
City: Chattanooga	City:
State: TN ZIP Code: 37421	State: ZIP Code:
Country (if International):	Country (if International):
Phone: 4235531105	Phone:
Email: dillon@cornerstonefreight.com	Email:

4. Does this claim amend one already filed?
☑ No
☐ Yes.
Claim number on court claims register (if known) _____
Filed on _____ MM / DD / YYYY

5. Do you know if anyone else has filed a proof of claim for this claim?
☑ No
☐ Yes.
Who made the earlier filing?
_____

Part 2: Give Information About the Claim as of the Date the Case Was Filed

6. Do you have any number you use to identify the debtor?

☑ No

☐ Yes.
Last 4 digits of the debtor's account or any number you use to identify the debtor:

____ ____ ____ ____

7. How much is the claim?

$ 7,405.88

Does this amount include interest or other charges?

☑ No

☐ Yes. Attach statement itemizing interest, fees, expenses, or other charges required by Bankruptcy Rule 3001(c)(2)(A).

8. What is the basis of the claim?

Examples: Goods sold, money loaned, lease, services performed, personal injury or wrongful death, or credit card. Attach redacted copies of any documents supporting the claim required by Bankruptcy Rule 3001(c). Limit disclosing information that is entitled to privacy, such as health care information.

Other Basis

Services performed - Transportation

9. Is all or part of the claim secured?

☑ No

☐ Yes. The claim is secured by a lien on property.

Nature of property:

☐ Real estate. If the claim is secured by the debtor's principal residence, file a *Mortgage Proof of Claim Attachment* (official Form 410-A) with this *Proof of Claim.*

☐ Motor vehicle

☐ Other. Describe:

_____

Basis for perfection:

_____

Attach redacted copies of documents, if any, that show evidence of perfection of security interest (for example, a mortgage, lien, certificate of title, financing statement, or other document that shows the lien has been filed or recorded.)

Value of property: $_____

Amount of the claim that is secured: $_____

Amount of the claim that is unsecured: $_____
(The sum of the secured and unsecured amounts should match the amount in line 7.)

Amount necessary to cure any default as of the date of the petition: $_____

Annual Interest Rate (when case was filed) _____%

☐ Fixed ☐ Variable

10. Is this claim based on a lease?

☑ No

☐ Yes. **Amount necessary to cure any default as of the date of petition.**

$_____

11. Is this claim subject to a right of setoff?

☑ No

☐ Yes. Identify the property:

_____

12. Is all or part of the claim entitled to priority under 11 U.S.C. § 507(a)?

☑ No

☐ Yes. *Check one:*

A claim may be partly priority and partly nonpriority. For example, in some categories, the law limits the amount entitled to priority.

Amount entitled to priority

☐ Domestic support obligations (including alimony and child support) under 11 U.S.C. § 507(a)(1)(A) or (a)(1)(B). $_____

☐ Up to $3,025* of deposits toward purchase, lease, or rental of property or services for personal, family, or household use. 11 U.S.C. § 507(a)(7). $_____

☐ Wages, salaries, or commissions (up to $13,650*) earned within 180 days before the bankruptcy petition is filed or the debtor's business ends, whichever is earlier. 11 U.S.C. § 507(a)(4). $_____

☐ Taxes or penalties owed to governmental units. 11 U.S.C. § 507(a)(8). $_____

☐ Contributions to an employee benefit plan. 11 U.S.C. § 507(a)(5). $_____

☐ Other. Specify subsection of 11 U.S.C. § 507 (a) (_____) that applies. $_____

* Amounts are subject to adjustment on 4/01/22 and every 3 years after that for cases begun on or after the date of adjustment.

13. Does this claim qualify as an Administrative Expense under 11 U.S.C. § 503(b)(9)?

☑ No

☐ Yes. **Amount that qualifies as an Administrative Expense under 11 U.S.C. § 503(b)(9)**: $_____

Part 3: Sign Below

The person completing this proof of claim must sign and date it. FRBP 9011(b).

If you file this claim electronically, FRBP 5005(a)(2) authorizes courts to establish local rules specifying what a signature is.

A person who files a fraudulent claim could be fined up to $500,000, imprisoned for up to 5 years, or both. 18 U.S.C. §§ 152, 157, and 3571.

Check the appropriate box:

☑ I am the creditor.

☐ I am the creditor's attorney or authorized agent.

☐ I am the trustee, or the debtor, or their authorized agent. Bankruptcy Rule 3004.

☐ I am a guarantor, surety, endorser, or other co-debtor. Bankruptcy Rule 3005.

I understand that an authorized signature on this *Proof of Claim* serves as an acknowledgment that when calculating the amount of the claim, the creditor gave the debtor credit for any payments received toward the debt.

I have examined the information in this *Proof of Claim* and have a reasonable belief that the information is true and correct.

I declare under penalty of perjury that the foregoing is true and correct.

M Dillon Vanzant 06/02/2020 15:22:27

Signature Date

Provide the name and contact information of the person completing and signing this claim:

Name: M. Dillon Vanzant

Address: 118 Lee Parkway Ste 203

City: Chattanooga

State: TN Zip: 37421

Country (in international): United States

Phone: 4235531105

Email: dillon@cornerstonefreight.com

Fill in this information to identify the case:	
Debtor 1	
Debtor 2 (Spouse, if filing)	
United States Bankruptcy Court for the:	District of
Case number	

Official Form 410

Proof of Claim

04/19

Read the instructions before filling out this form. This form is for making a claim for payment in a bankruptcy case. Do not use this form to make a request for payment of an administrative expense. Make such a request according to 11 U.S.C. § 503.

Filers must leave out or redact information that is entitled to privacy on this form or on any attached documents. Attach redacted copies of any documents that support the claim, such as promissory notes, purchase orders, invoices, itemized statements of running accounts, contracts, judgments, mortgages, and security agreements. **Do not send original documents;** they may be destroyed after scanning. If the documents are not available, explain in an attachment.

A person who files a fraudulent claim could be fined up to $500,000, imprisoned for up to 5 years, or both. 18 U.S.C. §§ 152, 157, and 3571.

Fill in all the information about the claim as of the date the case was filed. That date is on the notice of bankruptcy (Form 309) **that you received.**

Part 1: Identify the Claim

1. Who is the current creditor?

Cornerstone Freight, LLC
Name of the current creditor (the person or entity to be paid for this claim)

Other names the creditor used with the debtor _____

2. Has this claim been acquired from someone else?

☑ No
☐ Yes. From whom? _____

3. Where should notices and payments to the creditor be sent?

Federal Rule of Bankruptcy Procedure (FRBP) 2002(g)

Where should notices to the creditor be sent?	**Where should payments to the creditor be sent?** (if different)
Cornerstone Freight, LLC Name	_____ Name
P.O. BOX 8175 Number Street	_____ Number Street
Chattanooga TN 37414 City State ZIP Code	_____ City State ZIP Code
Contact phone 423-553-1105	Contact phone _____
Contact email dillon@cornerstonefreight.com	Contact email _____

Uniform claim identifier for electronic payments in chapter 13 (if you use one):

_ _

4. Does this claim amend one already filed?

☑ No
☐ Yes. Claim number on court claims registry (if known) _____ Filed on _____ MM / DD / YYYY

5. Do you know if anyone else has filed a proof of claim for this claim?

☑ No
☐ Yes. Who made the earlier filing? _____

Part 2: Give Information About the Claim as of the Date the Case Was Filed

6. **Do you have any number you use to identify the debtor?**
   - ☑ No
   - ☐ Yes. Last 4 digits of the debtor's account or any number you use to identify the debtor: ____ ____ ____ ____

7. **How much is the claim?** $ 7,405.88 . **Does this amount include interest or other charges?**
   - ☑ No
   - ☐ Yes. Attach statement itemizing interest, fees, expenses, or other charges required by Bankruptcy Rule 3001(c)(2)(A).

8. **What is the basis of the claim?**
   Examples: Goods sold, money loaned, lease, services performed, personal injury or wrongful death, or credit card.
   Attach redacted copies of any documents supporting the claim required by Bankruptcy Rule 3001(c).
   Limit disclosing information that is entitled to privacy, such as health care information.
   Services performed - Transportation

9. **Is all or part of the claim secured?**
   - ☑ No
   - ☐ Yes. The claim is secured by a lien on property.

   Nature of property:
   - ☐ Real estate. If the claim is secured by the debtor's principal residence, file a *Mortgage Proof of Claim Attachment* (Official Form 410-A) with this *Proof of Claim.*
   - ☐ Motor vehicle
   - ☐ Other. Describe: _____

   Basis for perfection: _____
   Attach redacted copies of documents, if any, that show evidence of perfection of a security interest (for example, a mortgage, lien, certificate of title, financing statement, or other document that shows the lien has been filed or recorded.)

   Value of property: $_____
   Amount of the claim that is secured: $_____
   Amount of the claim that is unsecured: $_____ (The sum of the secured and unsecured amounts should match the amount in line 7.)

   Amount necessary to cure any default as of the date of the petition: $_____

   Annual Interest Rate (when case was filed)_____%
   - ☐ Fixed
   - ☐ Variable

10. **Is this claim based on a lease?**
    - ☑ No
    - ☐ Yes. **Amount necessary to cure any default as of the date of the petition.** $_____

11. **Is this claim subject to a right of setoff?**
    - ☑ No
    - ☐ Yes. Identify the property: _____

12. **Is all or part of the claim entitled to priority under 11 U.S.C. § 507(a)?**

A claim may be partly priority and partly nonpriority. For example, in some categories, the law limits the amount entitled to priority.

☑ No

☐ Yes. *Check one:*

	Amount entitled to priority
☐ Domestic support obligations (including alimony and child support) under 11 U.S.C. § 507(a)(1)(A) or (a)(1)(B).	$_____
☐ Up to $3,025* of deposits toward purchase, lease, or rental of property or services for personal, family, or household use. 11 U.S.C. § 507(a)(7).	$_____
☐ Wages, salaries, or commissions (up to $13,650*) earned within 180 days before the bankruptcy petition is filed or the debtor's business ends, whichever is earlier. 11 U.S.C. § 507(a)(4).	$_____
☐ Taxes or penalties owed to governmental units. 11 U.S.C. § 507(a)(8).	$_____
☐ Contributions to an employee benefit plan. 11 U.S.C. § 507(a)(5).	$_____
☐ Other. Specify subsection of 11 U.S.C. § 507(a)(__) that applies.	$_____

* Amounts are subject to adjustment on 4/01/22 and every 3 years after that for cases begun on or after the date of adjustment.

Part 3: Sign Below

The person completing this proof of claim must sign and date it. FRBP 9011(b).

If you file this claim electronically, FRBP 5005(a)(2) authorizes courts to establish local rules specifying what a signature is.

A person who files a fraudulent claim could be fined up to $500,000, imprisoned for up to 5 years, or both. 18 U.S.C. §§ 152, 157, and 3571.

Check the appropriate box:

☑ I am the creditor.

☐ I am the creditor's attorney or authorized agent.

☐ I am the trustee, or the debtor, or their authorized agent. Bankruptcy Rule 3004.

☐ I am a guarantor, surety, endorser, or other codebtor. Bankruptcy Rule 3005.

I understand that an authorized signature on this *Proof of Claim* serves as an acknowledgment that when calculating the amount of the claim, the creditor gave the debtor credit for any payments received toward the debt.

I have examined the information in this *Proof of Claim* and have a reasonable belief that the information is true and correct.

I declare under penalty of perjury that the foregoing is true and correct.

Executed on date 6 / 1 / 2020
MM / DD / YYYY

M. Dillon Vangent
Signature

Print the name of the person who is completing and signing this claim:

Name _____
First name Middle name Last name

Title _____

Company _____
Identify the corporate servicer as the company if the authorized agent is a servicer.

Address _____
Number Street

_____
City State ZIP Code

Contact phone _____ Email _____

CORNERSTONE FREIGHT LLC

Invoice / Pro Number 44165
Date 3/20/20
Shippers Ref No
PO TM16204
BOL

Remit to Cornerstone Freight, LLC
P.O. BOX 8175
Chattanooga, TN 37414

Bill To TUEDATX

CHARLES HIX
TUESDAY MORNING, INC.
6250 LBJ FREEWAY
DALLAS, TX 75240

Shipper TUESDAY MORNING, INC.
4610 LANGLAND ROAD
FARMERS BRANCH, TX 75244
(972)934-7126

Consignee TUESDAY MORNING # 1218
5517 SIERRA SPRINGS LANE
FT WORTH, TX 76036

Origin- Pickup - TUESDAY MORNING, INC. 4610 LANGLAND ROAD FARMERS BRANCH, TX 75244
Drop - TUESDAY MORNING # 1218 5517 SIERRA SPRINGS LANE FT WORTH, TX 76036

Start Date	Delivery Date	Terms	Due Date
3/20/2020	3/23/2020	25 Days	04/14/20

Description	Miles	Units	Weight	Tons	Pallets	Rate	Charges
Rate for loaded miles	1.0	0.00	0.0	.0	0.0	550.00	$550.00

Notes

Please Pay This Amount **$550.00**

CORNERSTONE FREIGHT LLC

Invoice / Pro Number 44166
Date 3/18/20
Shippers Ref No
PO TM16203
BOL

Remit to Cornerstone Freight, LLC
P.O. BOX 8175
Chattanooga, TN 37414

Bill To TUEDATX

CHARLES HIX
TUESDAY MORNING, INC.
6250 LBJ FREEWAY
DALLAS, TX 75240

Shipper LOZIER CORPORATION
401 TAYLOR STREET
SCOTTSBORO, AL 35768
(256)259-6100

Consignee TUESDAY MORNING # 1218
5517 SIERRA SPRINGS LANE
FT WORTH, TX 76036

Origin- Pickup - LOZIER CORPORATION 401 TAYLOR STREET SCOTTSBORO, AL 35768
Drop - TUESDAY MORNING # 1218 5517 SIERRA SPRINGS LANE FT WORTH, TX 76036

Start Date	Delivery Date	Terms	Due Date
3/18/2020	3/23/2020	25 Days	04/12/20

Description	Miles	Units	Weight	Tons	Pallets	Rate	Charges
Rate for loaded miles	810.0	0.00	0.0	.0	0.0	2.90	$2,349.00
Fuel Surcharge	810.0	0.00	0.0	.0	0.0	0.40	$324.00

Notes

Please Pay This Amount **$2,673.00**

CORNERSTONE FREIGHT LLC

Invoice / Pro Number 44167
Date 3/18/20
Shippers Ref No
PO TM16203
BOL

Remit to Cornerstone Freight, LLC
P.O. BOX 8175
Chattanooga, TN 37414

Bill To TUEDATX

CHARLES HIX
TUESDAY MORNING, INC.
6250 LBJ FREEWAY
DALLAS, TX 75240

Shipper LOZIER CORPORATION
401 TAYLOR STREET
SCOTTSBORO, AL 35768
(256)259-6100

Consignee TUESDAY MORNING # 1218
5517 SIERRA SPRINGS LANE
FT WORTH, TX 76036

Origin- Pickup - LOZIER CORPORATION 401 TAYLOR STREET SCOTTSBORO, AL 35768
Drop - TUESDAY MORNING # 1218 5517 SIERRA SPRINGS LANE FT WORTH, TX 76036

Start Date	Delivery Date	Terms	Due Date
3/18/2020	3/23/2020	25 Days	04/12/20

Description	Miles	Units	Weight	Tons	Pallets	Rate	Charges
Rate for loaded miles	810.0	0.00	0.0	.0	0.0	2.90	$2,349.00
Fuel Surcharge	810.0	0.00	0.0	.0	0.0	0.40	$324.00

Notes

Please Pay This Amount **$2,673.00**

P.O. Box 8175 ◆ Chattanooga, TN 37414 ◆ **tel:** 423.553.1105 ◆ **fax:** 423.553.1107
www◆cornerstonefreight◆com

CORNERSTONE FREIGHT LLC

Invoice / Pro Number 44168
Date 3/16/20
Shippers Ref No
PO TM16206
BOL

Remit to Cornerstone Freight, LLC
P.O. BOX 8175
Chattanooga, TN 37414

Bill To TUEDATX

CHARLES HIX
TUESDAY MORNING, INC.
6250 LBJ FREEWAY
DALLAS, TX 75240

Shipper GALT DISPLAY RACK
141 SAVAGE DRIVE
CAMBRIDGE, ON
(800)461-3892

Consignee TUESDAY MORNING # 1218
5517 SIERRA SPRINGS LANE
FT WORTH, TX 76036

Origin- Pickup - GALT DISPLAY RACK 141 SAVAGE DRIVE CAMBRIDGE, ON
Drop - TUESDAY MORNING # 1218 5517 SIERRA SPRINGS LANE FT WORTH, TX 76036

Start Date	Delivery Date	Terms	Due Date
3/16/2020	3/23/2020	25 Days	04/10/20

Description	Miles	Units	Weight	Tons	Pallets	Rate	Charges
LTL Shipment	1.0	0.00	0.0	.0	0.0	1,509.88	$1,509.88

Notes

Please Pay This Amount **$1,509.88**